

26SMCV01879 26SMCV01879

County: los-angeles

Division: Civil Law and Motion

Department: 205

Hearing date: 2026-09-09

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Case Number: 26SMCV01879 Hearing Date: September 9, 2026 Dept: 205

HEARING DATE: September 9, 2026

JUDGE/DEPT: Moreton/Beverly Hills, 205

CASE NAME: JPMorgan Chase Bank, N.A. v. Authenticated Ventures, LLC, et al.

CASE NUMBER: 26SMCV01879

COMP. FILED: April 2, 2026

PROCEEDINGS: REQUEST FOR ENTRY OF DEFAULT JUDGMENT

MOVING PARTY: JPMorgan Chase Bank, N.A.

RESPONDING PARTY: Authenticated Ventures, LLC; James Andrews

BACKGROUND

This is a breach of contract case. On January 11, 2023, Defendant Authenticated Ventures, LLC ("Borrower Defendant") entered into a Business Line of Credit and Security Agreement in favor of Plaintiff JPMorgan Chase Bank, N.A., memorializing a revolving loan not to exceed \$90,000.00 (the "Loan"). On the same date, Defendant James Andrews ("Guarantor Defendant") entered into a Guaranty Agreement in consideration of the Loan (the "Guaranty").

Borrower Defendant has failed to pay under the terms of the Contract and is in default. Guarantor Defendant has failed to cure the default of the Borrower Defendant under the Guaranty. Accordingly, Guarantor Defendant is in default.

As of June 23, 2026, Plaintiff is owed a principal balance of \$90,512.11, plus late fees and costs of \$582.74, for a total of \$91,094.85. While additional sums have accrued, including \$5,209.43 in interest and substantial attorneys' fees and costs, Plaintiff is not seeking recovery of such amounts, and seeks judgment solely for the outstanding principal and late charges and costs.

Plaintiff substitute served Defendants on April 29, 2026, by leaving a copy of the summons and complaint with "Ari Doe" at a private mailbox located at a UPS store. The address of the store is 324 S. Beverly Dr., Beverly Hills, CA 90212. Defendants did not respond.

On June 9, 2026, following Plaintiff's filing of a Request for Entry of Default, the Clerk of the Court entered default against Defendants. This hearing is on Plaintiff's request for entry of default judgment.

REQUEST FOR RELIEF

Default judgment against Defendants for a total of \$91,094.85, which is comprised of: (1) \$90,512.11 as the "demand of complaint", and (2) \$582.74 for loan fees and costs.

ANALYSIS

There are several defects in Plaintiff's proofs of service. Plaintiff served Defendants via a commercial mail receiving agency (CMRA). Section 415.20(c) provides that substitute service may be effectuated on an individual by leaving a copy of the summons and complaint with a CMRA "if the only address reasonably known for the person ... is a private mailbox obtained through a commercial mail receiving agency." (§ 415.20, subd. (c), *italics added*.) Here, Plaintiff has not indicated how it came to conclude that there is no other address for Defendants, including whether it ran a search for a different address.

Further, California law requires the CMRA to place a notice or copy of the documents in the customer's mailbox within 48 hours and to send the documents by first-class mail within five days after receipt to the customer's address. (Bus. & Prof. Code, § 17538.5, subd. (d)(1); see also § 415.20, subd. (c).) There is no evidence that indicates whether these statutory requirements were met. Plaintiff did not submit any declaration from a UPS store employee.

Accordingly, because there is no proper service, the Court has no personal jurisdiction over Defendants, and any default or default judgment against them would be void.

CONCLUSION AND ORDER

For the foregoing reasons, Plaintiff's Request for Default Judgment is DENIED. The Court sets an order to show cause why the case should not be dismissed for failure to obtain default judgment for December 9, 2026 at 8:30 a.m.